

§ 365.3. Notice of appeal. 1. An appeal shall be taken by filing a written notice of appeal, in duplicate, with the clerk of the family court in which the order was entered.

2. If the respondent is the appellant, he must also serve a copy of such notice of appeal upon the appropriate presentment agency.

3. If the presentment agency is the appellant, it must serve a copy of such notice of appeal upon the respondent and upon the attorney who last appeared for him or her in the family court.

4. Following the filing with him of the notice of appeal in duplicate, the clerk of the family court must endorse upon such instruments the filing date and must transmit the duplicate notice of appeal to the clerk of the appropriate appellate division of the supreme court.